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California Passes Historic Bill To Label 'Non-Ultraprocessed' Food In Grocery Stores

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California shoppers may soon be able to easily spot foods that are not ultraprocessed if Governor Gavin Newsom signs a new bill.

Assembly Bill 2244, which has already cleared the state Legislature, would create a "Non-Ultraprocessed Certified" seal for foods and beverages that qualify.

The proposal is the first of its kind in the country and now awaits a decision from Newsom, who must sign or veto it by the end of September, according to National Hog Farmer.

The vote records show that AB 2244 cleared its final legislative votes sans opposition, passing the state Senate by a 32-0 vote and the Assembly 72-0.

The bill was authored by Assemblymember Jesse Gabriel, D-Encino, and would require the California Department of Public Health to begin accrediting independent certification agents by June 1, 2029.

Those agents would then determine which products qualify for the seal. Foods that match the state's criteria for ultraprocessed food would not be eligible, the legislation states.

AB 2244 would also require the department to maintain a public webpage listing all currently certified Non-Ultraprocessed Certified products. Certification agents would report the nutrition details for each product, including ingredients and certification date.

The department would design a standardized seal bearing either "Non-Ultraprocessed Certified Food Standard" or the shorter "Non-UPF Certified," according to the bill. The seal may feature California or whole foods imagery.

According to National Hog Farmer, supporters envision the seal as a cousin to the "USDA Organic" label, which offers an accessible way for shoppers navigating a maze of unfamiliar ingredients and jargon-filled labels.

Because the label would be purely voluntary, manufacturers would not be required to seek certification, according to the Environmental Working Group.

Manufacturers that do seek the label would be required to have their products recertified at least once every three years, plus any time their product is reformulated, according to the bill.

The bill also extends beyond packaging, requiring grocery stores that post more than $10 million in sales on an annual basis to make at least three certified items easy to spot in their stores, assuming they carry more than 25 qualifying products.

Grocery stores could comply with this requirement through the use of signs, separate displays or other means that may aid shoppers in distinguishing the non-ultraprocessed products.

"Parents shouldn't need a Ph.D. in chemistry to understand what they're feeding their kids," Gabriel said, per National Hog Farmer.

The proposal comes in the wake of other California legislation targeting food additives and ultraprocessed products, including a 2025 measure that established a statutory definition of ultraprocessed food, as well as a process for

restricting certain products in public schools.

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